

CHAPTER 36.*Distribution of Industry Act, 1945.*

ARRANGEMENT OF SECTIONS.

Provisions as to development areas.

Section.

1. Provision of premises for industrial undertakings in development areas.
2. Financial assistance to trading or industrial estate companies in development areas.
3. Financial assistance for improvement of basic services for development areas.
4. Financial assistance for industrial undertakings in development areas.
5. Provisions for dealing with derelict land in development areas.
6. Buildings erected under ss. 1 and 5 to comply with planning schemes.
7. Alteration of Schedule of development areas.
8. Repeal of Special Areas Acts.

General provisions as to distribution of industry.

9. Erection of buildings for new industrial units to be notified to Board of Trade.
10. Supplementary provisions relating to s. 9.

Supplementary Provisions.

11. Expenses and receipts.
12. Provisions as to acquisition and disposal of land.
13. Exercise of functions of Board of Trade.
14. Service of notices.
15. Interpretation.
16. Provisions as to Scotland.
17. Short title and extent.

SCHEDULES :

First Schedule.—Development Areas.

Second Schedule.—Compulsory Purchase Orders.

An Act to provide for the development of certain areas :
for controlling the provision of industrial premises with
a view to securing the proper distribution of industry ;
and for purposes connected with the matters aforesaid.
[15th June 1945.]

BE it enacted by the King's most Excellent Majesty, by and
with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows :—

Provisions as to development areas.

1. In any area specified in the First Schedule to this Act (hereinafter referred to as a "development area") the Board of Trade may for the purpose of facilitating the provision of premises needed for meeting the requirements of industrial undertakings (including requirements arising from the needs of persons employed

Provision of
premises for
industrial
undertakings
in
development
areas.

or to be employed therein) or sites for such premises or means of access thereto—

- (a) acquire, by agreement or, if so authorised by a compulsory purchase order made under this Act, by compulsory purchase, land for the provision thereon (whether by the Board or by other persons) of such premises or means of access; and
- (b) erect such buildings and carry out such works on land held by the Board as appear to them expedient for the purpose of providing such premises sites or means of access, or of rendering the land suitable for the provision thereof by other persons.

2. The Board of Trade may with the consent of the Treasury make loans to trading or industrial estate companies (whether incorporated before or after the passing of this Act) where the Board are satisfied that the loans will further the provision of industrial premises in development areas in such a way as to induce persons to establish or expand industrial undertakings in such areas.

Financial assistance to trading or industrial estate companies in development areas.

3.—(1) Where it appears to a Minister of the Crown that adequate provision has not been made for the needs of any development area in respect of a basic service for which he is responsible, he may with the consent of the Treasury make grants or loans towards the cost of improving the service to such persons and in such manner as appears to him to be requisite for enabling those needs to be met.

Financial assistance for improvement of basic services for development areas.

(2) In this section the expression "basic service" means the provision of facilities for transport (whether by road, rail, water or air) or of power, lighting or heating, and housing; health and other services on which the development of the area in question, and in particular of industrial undertakings therein, depends.

(3) The powers conferred by this section are in addition to any other powers of a Minister of the Crown to make grants or loans.

4.—(1) The Treasury may, in accordance with recommendations of an advisory committee appointed by them, agree with any person carrying on, or proposing to carry on, in a development area an industrial undertaking to which this section applies (whether an undertaking already established or proposed to be established) to give financial assistance to the carrying on of the undertaking, on such terms as may be specified in the agreement, in one or more of the following ways—

Financial assistance for industrial undertakings in development areas.

- (a) by making annual grants to the said person, either towards the cost of paying interest on moneys

borrowed or to be borrowed for the purposes of the undertaking or generally for those purposes ;

(b) by making loans for those purposes.

(2) This section applies to any undertaking approved by the Board of Trade as complying with the requirements of the proper distribution of industry, being an undertaking as to which the Treasury are satisfied in accordance with such recommendations as aforesaid that there are good prospects of its ultimately being able to be carried on successfully without further assistance under this section, but that the person carrying it on or proposing to carry it on cannot for the time being, without assistance under this section, obtain capital required for the purposes of the undertaking on the requisite terms.

Provisions for
dealing with
derelict land
in
development
areas.

5.—(1) Where it appears to the Board of Trade that by reason of land in a development area being derelict and likely to remain so for a considerable period it is expedient that it should be acquired by the Board for the purpose of securing that it is brought into use or of improving the amenities of the neighbourhood, the Board may acquire the land by agreement or, if so authorised by a compulsory purchase order made under this Act, by compulsory purchase.

(2) The Board of Trade may carry out such work on land acquired by them under this section as appears to them expedient for enabling the land to be brought into use or for improving the amenities of the neighbourhood.

(3) The Board of Trade may, with the consent of the Treasury, make grants, in such manner as appears to the Board to be requisite for the purposes of this subsection, to any local authority, or to any company the constitution of which prohibits the distribution of the profits of the company to its members, towards the cost of carrying out work on land in development areas which is derelict for the purpose of enabling the land to be brought into use or of improving the amenities of the neighbourhood.

Buildings
erected under
ss. 1 and 5 to
comply with
planning
schemes.
22 & 23 Geo. 5.
c. 48, c. 49.

6. The Board of Trade shall not erect any building or carry out any work in pursuance of section one or five of this Act so as to contravene the provisions of any scheme in force under the Town and Country Planning Act, 1932, the Town and Country Planning (Scotland) Act, 1932, or any enactment repealed by either of those Acts or by any enactment thereby repealed.

Alteration of
Schedule of
development
areas.

7.—(1) The Board of Trade may from time to time, and shall on the expiration of the period of three years from the passing of this Act, take into consideration the question whether any area should be added to, or removed from, the First Schedule to this Act.

(2) Where at any time it appears to the Board that the distribution of industry is such that in any area not specified in the said First Schedule there is likely to be a special danger of unemployment, the Board may by order direct that the area shall be added to that Schedule.

(3) Where at any time after the expiration of the period of three years from the passing of this Act the Board are satisfied, as to the whole or any part of any area specified in the said First Schedule, that the conditions aforesaid no longer exist, they may by order direct that the area or part in question shall be removed from that Schedule :

Provided that an order under this subsection shall not affect the validity or continuance of anything done or entered into before the coming into operation of the order.

(4) An order under this section shall not be made except after consultation with every local authority whose area includes any land to which the order relates.

(5) An order under this section shall not have effect until it has been approved by a resolution of each House of Parliament.

8.—(1) The Special Areas (Development and Improvement) Acts, 1934 and 1937, are hereby repealed. Repeal of
Special
Areas Acts.

(2) As soon as may be after the passing of this Act the Special Areas Fund shall be wound up in accordance with directions of the Treasury, and there shall be paid into the Exchequer—

(a) any balance in the Fund at the winding up thereof, and

(b) any moneys accruing due after the winding up thereof which apart from this subsection would have been payable into the Fund,

but nothing in the foregoing provisions of this section shall affect the operation of subsections (5) to (7) of section three of the Act of 1934 (which relates to the preparation and laying before Parliament of accounts) as respects things done before the winding up of the Fund.

(3) Any interest vested in a Commissioner immediately before the passing of this Act in land acquired by him under section four of the Act of 1934, and any security then vested in a Commissioner to secure the repayment of a loan made by him under that Act, shall on the passing of this Act and without more vest in such Minister of the Crown as the Treasury may determine.

(4) Without prejudice to the provisions of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals), the repeal of the said Acts shall not affect the continued operation of any agreement entered into thereunder before the 52 & 53 Vict.
c. 63.

passing of this Act, but any such agreement shall be modified as follows, that is to say—

- (a) in the case of an agreement entered into by a Commissioner to make loans or grants to assist the provision of industrial premises, the Board of Trade shall be substituted for the Commissioner ;
- (b) in the case of any other agreement entered into by a Commissioner there shall be substituted for the Commissioner such Minister of the Crown as the Treasury may determine,

and any measures undertaken by a Commissioner may be completed by such Minister of the Crown as aforesaid.

25 & 26 Geo. 5.
c. 1. (5) In this section the expression "the Act of 1934" means the Special Areas (Development and Improvement) Act, 1934, and the expression "Commissioner" means a Commissioner appointed under section one of that Act.

General provisions as to distribution of industry.

Erection of
buildings for
new industrial
units to
be notified to
Board of
Trade.

9.—(1) No person shall enter into a contract for the erection of an industrial building forming part of a new industrial unit, or begin the erection of such a building, at a time earlier than the expiration of sixty days, or such shorter period as the Board of Trade may allow, from the giving to the Board of notification in writing of the proposed erection :

Provided that this subsection shall not apply to the erection of a building which will have an aggregate floor space not exceeding ten thousand square feet.

(2) For the purposes of this section, a building shall be deemed to form part of a new industrial unit unless—

- (a) it is contiguous or adjacent to another industrial building used in the course of the same undertaking, being a building erected before the passing of this Act or in respect of which notification has been given under this section ; or
- (b) it replaces such another industrial building as aforesaid and is erected either on the same site or on a site contiguous or adjacent to the site thereof.

(3) The Board of Trade may, by notice in writing served upon any person who has notified the Board under this section of the proposed erection of a building, require him to inform them, in so far as the information was not given in the notification, of the proposed situation of the building, the industrial process to be carried on therein, the estimated aggregate floor space thereof, and the estimated number of men and of women to be employed therein.

(4) If any person contravenes the provisions of subsection (1) of this section, or fails to furnish any information required under subsection (3) thereof, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds.

(5) If in furnishing any information required under subsection (3) of this section any person knowingly or recklessly makes any statement false in a material particular, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds, or on conviction on indictment to a fine not exceeding five hundred pounds or to imprisonment for a term not exceeding twelve months or to both such imprisonment and such fine.

10.—(1) The Board of Trade may by regulations made under this section exempt from the provisions of the last foregoing section any class or description of industrial building.

(2) Any regulations made under this section shall be laid before Parliament as soon as may be after they are made, and if either House of Parliament within the period of forty days beginning with the day on which the regulations are laid before it resolves that the regulations be annulled, they shall thereupon become void, but without prejudice to the validity of anything previously done thereunder or to the making of new regulations.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

(3) For the purposes of the last foregoing section, the person who causes the erection of a building (whether for the occupation or use of himself or of any other person), and not (except where the first-mentioned person himself carries out the work) the person by whom the work is carried out, shall be deemed to be the person by whom the building is erected.

Supplementary Provisions.

11.—(1) Subject to any direction given under this section, any expenses incurred by any Government department under this Act shall be defrayed out of moneys provided by Parliament.

(2) Subject to any direction given under this section, any receipts of a Government department in respect of loans made under this Act, or of the disposal of land acquired, or on which work has been carried out, under this Act, shall be paid into the Exchequer.

(3) The Treasury may direct that any expenses or receipts of a Government department under section three or section eight of this Act shall respectively be defrayed out of or paid into such

Supple-
mentary
provisions
relating to
s. 9.

Expenses and
receipts.

fund under the control and management of the department as may be specified in the direction :

Provided that no direction shall be given such as to impose a charge on the Consolidated Fund of the United Kingdom.

Provisions as
to acquisition
and disposal
of land.
26 Geo. 5 &
1 Edw. 8. c. 51.

12.—(1) Compulsory purchase orders may be made under this Act in accordance with the provisions of the Housing Act, 1936, set out with modifications in the Second Schedule to this Act ; and those provisions shall apply accordingly to the compulsory purchase of land by virtue of this Act.

(2) The consideration for any disposal (whether by sale or lease or otherwise) of land acquired by the Board of Trade under this Act, or land held by the Board on which buildings have been erected or works carried out by them under this Act, shall be determined with the consent of the Treasury.

Exercise of
functions of
Board of
Trade.

13. Anything required or authorised under this Act to be done by, to or before the Board of Trade may be done by, to or before the President of the Board, any secretary, under-secretary or assistant secretary of the Board or any person authorised in that behalf by the President of the Board.

Service of
notices.

14.—(1) Any notice or other document required or authorised to be served under this Act may be served on any person either by delivering it to him, or by leaving it at his proper address, or by post, so however that a document shall not be duly served by post unless it is sent by registered letter.

(2) Any such document required or authorised to be served upon an incorporated company or body shall be duly served if it is served upon the secretary or clerk of the company or body.

52 & 53 Vict.
c. 63.

(3) For the purposes of this section and of section twenty-six of the Interpretation Act, 1889, the proper address of any person upon whom any such document as aforesaid is to be served shall, in the case of the secretary or clerk of any incorporated company or body be that of the registered or principal office of the company or body, and in any other case be the last known address of the person to be served.

(4) If it is not practicable after reasonable enquiry to ascertain the name or address of an owner, lessee or occupier of land on whom any such document as aforesaid is to be served, the document may be served by addressing it to him by the description of "owner" or "lessee" or "occupier" of the premises (naming them) to which it relates, and by delivering it to some person on the premises or, if there is no person on the premises to whom it can be delivered, by affixing it, or a copy of it, to some conspicuous part of the premises.

15.—(1) In this Act the following expressions have the meanings Interpretation. hereby assigned to them respectively, that is to say,—

“ industrial building ” and “ industrial premises ” mean respectively a building and premises used or designed or suitable for use for the carrying on of any industrial process ;

“ industrial undertaking ” means an undertaking by which an industrial process is carried on ;

“ industrial process ” means any process for or incidental to any of the following purposes, namely,—

(a) the making of any article or of part of any article, or

(b) the altering, repairing, ornamenting, finishing, cleaning, washing, packing or canning, or adapting for sale, or breaking up or demolition, of any article, or

(c) without prejudice to the foregoing paragraphs, the getting, dressing or preparation for sale of minerals or the extraction or preparation for sale of oil or brine,

being a process carried on in the course of trade or business, and for the purposes of this definition the expression “ article ” means an article of any description, including a ship or vessel ;

“ local authority ” means the council of a county, county borough, or county district, or in relation to Scotland a county council, town council or district council ;

“ trading or industrial estate company ” means a company the objects of which include the provision of industrial premises for use by persons other than the company, being a company the constitution of which prohibits the distribution of the profits of the company to its members.

(2) References in this Act to a Minister of the Crown shall be construed as references to the Secretary of State, Minister or Board in charge of a Government department.

16.—(1) Anything required or authorised to be done by section seven of this Act in relation to any area or part of an area in Scotland shall be done by the Board of Trade and the Secretary of State acting jointly. Provisions
as to
Scotland.

(2) The provisions of Part V of the Second Schedule to this Act shall have effect for the application of that Schedule to Scotland.

17.—(1) This Act may be cited as the Distribution of Industry Act, 1945. Short title and
extent.

(2) This Act does not extend to Northern Ireland.

SCHEDULES.

Sections 1, 7.

FIRST SCHEDULE.

DEVELOPMENT AREAS.

The North-Eastern Development Area.

The Administrative County of Durham and the County Boroughs of Darlington, Gateshead, South Shields, Sunderland and West Hartlepool.

The County Boroughs of Newcastle-on-Tyne and Tynemouth.

In the Administrative County of Northumberland—

The Boroughs of Wallsend and Blyth.

The Urban Districts of Longbenton, Newburn, Ashington, Newbiggin by the Sea, Bedlingtonshire, Seaton Valley, Whitley Bay and Gosforth.

The County Borough of Middlesbrough.

In the North Riding of Yorkshire—

The Boroughs of Thornaby on Tees and Redcar.

The Urban Districts of Eston, Guisborough, Saltburn and Marske by the Sea, Skelton and Brotton and Loftus.

Within the Rural District of Stokesley, the parishes of Ingleby Barwick, Maltby, Stainton, Hemlington, Marton and Ormesby, and within the Rural District of Whitby, the parish of Hinderwell.

The West Cumberland Development Area.

In the Administrative County of Cumberland—

The Boroughs of Whitehaven and Workington.

The Urban Districts of Cockermouth and Maryport.

The Rural Districts of Cockermouth, Ennerdale, Millom and Wigton.

The South Wales and Monmouthshire Development Area.

The Administrative County of Glamorgan, and the County Boroughs of Cardiff, Merthyr Tydfil and Swansea.

In the Administrative County of Carmarthen—

The Boroughs of Kidwelly and Llanelly.

The Urban Districts of Ammanford, Burry Port and Cwmamman.

The Rural District of Llanelly.

In the Administrative County of Pembroke—

The Borough of Pembroke.

In the Administrative County of Brecknock—

The Urban District of Brynmawr.

The Rural Districts of Crickhowell, Vaynor and Penderyn and Ystradgynlais.

The County Borough of Newport.

In the Administrative County of Monmouth—

The Urban Districts of Abercarn, Abertillery, Bedwas and Machen, Bedwellty, Blaenavon, Caerleon, Cwmbran, Ebbw Vale, Mynyddislwyn, Nantyglo and Blaina, Pontypool, Rhymney, Risca, Tredegar and Usk.

The Rural Districts of Magor and St. Mellons and Pontypool.

1ST SCH.
—cont.

The Scottish Development Area.

The Counties of Dunbarton, Lanark and Renfrew.

The County of the City of Glasgow.

The parishes of Ardrossan, Beith, Dalry, Dregghorn, Dunlop, Fenwick, Galston, Irvine, Kilbirnie, Kilmarnock, Kilmaurs, Kilwinning, Loudon, Riccarton, Stevenston, and Stewarton, within the County of Ayr.

The parish of Sanquhar within the County of Dumfries so far as situated north of the London Midland and Scottish Railway line from Dumfries to Kilmarnock.

The parishes of Falkirk, Grangemouth, Muiravonside and Slamannan within the County of Stirling so far as situated south of the London and North Eastern Railway line from Castlecary to Linlithgow, and also the parishes of Campsie and Baldernock within that County.

The parishes of Bathgate, Ecclesmachan, Kirkliston, Livingston, Linlithgow, Torphichen, Uphall and Whitburn within the County of West Lothian so far as situated south of the London and North Eastern Railway line from Linlithgow to Ratho.

The parishes of Kirknewton, Mid Calder and West Calder within the County of Midlothian.

The County of the City of Dundee.

References in this Schedule to any county, county borough, City, county district or parish shall, subject to the provisions of any order under subsection (2) of section seven of this Act, be construed as references thereto as defined at the passing of this Act.

SECOND SCHEDULE.

Sections 12, 16.

COMPULSORY PURCHASE ORDERS.

PART I.

PROCEDURE FOR AUTHORISING COMPULSORY PURCHASE.

1. A compulsory purchase order shall incorporate, subject to the modifications set out in Part IV of this Schedule and to any necessary adaptations, the Lands Clauses Acts, section seventy-seven of the Railways Clauses Consolidation Act, 1845, and sections seventy-eight to eighty-five of that Act (as originally enacted and not as amended for certain purposes by section fifteen of the Mines (Working Facilities

8 & 9 Vict.

c. 20.

13 & 14 Geo.

c. 20.

2ND SCH.
—cont.

and Support) Act, 1923), and shall describe by reference to a map the land to which it relates, and subject as aforesaid shall be in such form as the Board of Trade may determine.

2. Where the Board of Trade propose to make a compulsory purchase order they shall prepare a draft thereof, and shall—

- (a) publish in one or more newspapers circulating in the district in which the land to which the draft of the order relates is situated a notice stating that they propose to make a compulsory purchase order and describing the said land and naming a place where a copy of the draft of the order and of the map referred to therein may be seen at all reasonable hours ;
- (b) serve on every owner, lessee and occupier (except tenants for a month or a less period than a month) of any of the land to which the draft of the order relates a notice stating that the Board propose to make a compulsory purchase order and the effect thereof and specifying the time within which, and the manner in which, objections to the proposal may be made.

3.—(1) If no objection is duly made—

- (a) by any of the persons upon whom notices are required to be served, or
- (b) by any local authority in whose area the land to which the draft of the order relates is situated, or by any society or body having as its object or one of its objects the preservation of amenities enjoyed by the public, being a society or body the character and membership of which is such that it is, in the opinion of the Board of Trade, proper that their views should be considered,

or if all objections so made are withdrawn, the Board may, if they think fit, make an order either in accordance with the draft or with any modification thereof except, unless all persons interested consent, a modification extending the order to any land not designated by the draft.

(2) In any other case the Board shall, before making an order, cause a public local inquiry to be held, and shall consider any objection not withdrawn and the report of the person who held the inquiry, and may then make an order as aforesaid :

Provided that the Board may require any person who has made an objection to state in writing the grounds thereof, and may make an order without causing a public local inquiry to be held if they are satisfied that every objection duly made relates exclusively to matters which can be dealt with by the arbitrator by whom the compensation is to be assessed.

23 & 24 Geo. 5.
c. 51. (3) Subsections (2) to (5) of section two hundred and ninety of the Local Government Act, 1933 (which relate to the giving of evidence at, and defraying the costs of, local inquiries) shall apply to local inquiries held in pursuance of this paragraph as they apply to the local inquiries mentioned in subsection (1) of the said section two hundred and ninety.

PART II.

2ND SCH.
—cont.

VALIDITY AND OPERATION OF COMPULSORY PURCHASE ORDERS.

4. So soon as may be after a compulsory purchase order has been made, the Board of Trade shall publish in one or more newspapers circulating in the district in which the land designated by the order is situated a notice stating that the order has been made, and naming a place where a copy of the order and of the map referred to therein may be seen at all reasonable hours, and shall serve a like notice on every person who, having duly given notice of his objection to the making of the order, appeared at the public local inquiry in support of his objection.

5. If any person aggrieved by a compulsory purchase order desires to question the validity thereof, or of any provision contained therein, on the ground that it is not within the powers of this Act or that any requirement of this Act has not been complied with in relation to the order, he may, within six weeks from the publication of notice of the making of the order, make an application to the High Court, and on any such application the Court—

- (a) may by interim order suspend the operation of the order or any provision contained therein, either generally or in so far as it affects any property of the applicant, until the final determination of the proceedings; and
- (b) if satisfied that the order or any provision contained therein is not within the powers of this Act or that the interests of the applicant have been substantially prejudiced by any requirement of this Act not having been complied with, may quash the order or any provision contained therein, either generally or in so far as it affects any property of the applicant.

6. Subject to the provisions of the last foregoing paragraph, a compulsory purchase order shall not, either before or after it has been made, be questioned in any legal proceedings whatsoever, and shall become operative on the expiration of six weeks from the date on which notice of the making of the order is published in accordance with the provisions of this Part of this Schedule.

PART III.

RESTRICTIONS ON COMPULSORY PURCHASE OF CERTAIN LANDS.

7.—(1) Where a compulsory purchase order authorises the purchase of any land forming part of a common, open space, fuel allotment or field garden allotment, the order, so far as it relates to the purchase of such land, shall be provisional only and shall be of no effect until confirmed by Parliament, except where the order provides for giving in exchange for such land other land, not being less in area, certified by the appropriate Minister to be equally advantageous to the persons, if any, entitled to commonable or other rights and to the public.

2ND SCH.
—cont.

(2) Before giving any such certificate the appropriate Minister shall give public notice of the proposed exchange, and afford opportunities to all persons interested to make representations and objections in relation thereto, and shall, if necessary, hold a public local inquiry on the subject.

Sub-paragraph (3) of paragraph 3 of this Schedule shall apply to local inquiries under this paragraph as it applies to local inquiries under that paragraph.

(3) An order which provides for such an exchange shall provide for vesting the land given in exchange in the persons in whom the common, open space, or allotment was vested, subject to the same rights, trusts and incidents as attached to the common, open space or allotment, and for discharging the part of the common, open space, or allotment purchased from all rights, trusts and incidents to which it was previously subject.

(4) Part II of this Schedule shall not apply to a compulsory purchase order in so far as it is provisional only and of no effect until confirmed by Parliament.

(5) For the purposes of this paragraph, the expression "appropriate Minister" means, in relation to a common or a fuel allotment or field garden allotment, the Minister of Agriculture and Fisheries, and in relation to an open space, not being a common or such an allotment, the Minister of Town and Country Planning; the expression "common" includes any land subject to be enclosed under the Inclosure Acts, 1845 to 1882, and any town or village green; the expressions "fuel allotment" and "field garden allotment" mean respectively an allotment set out as a fuel allotment and as a field garden allotment under an Inclosure Act; and the expression "open space" means any land laid out as a public garden, or used for the purposes of public recreation, or land being a disused burial ground.

8. A compulsory purchase order shall not authorise the purchase of any land which is the site of an ancient monument or other object of archaeological interest, or the purchase of any building included in a list compiled or approved under the provisions of section forty-two of the Town and Country Planning Act, 1944.

7 & 8 Geo. 6.
c. 47.

9. A compulsory purchase order shall not authorise the purchase of any land belonging to the National Trust for Places of Historic Interest or Natural Beauty incorporated by the National Trust Act, 1907, which is inalienable under section twenty-one of that Act or section eight of the National Trust Act, 1939.

7 Edw. 7.
c. xxxvi.
2 & 3 Geo. 6.
c. lxxxvi.

10.—(1) A compulsory purchase order shall not authorise the purchase of any land which is the property of a local authority, or of any land which is the property of statutory undertakers, having been acquired by them for the purposes of their undertaking.

(2) In this paragraph the expression "local authority" includes a joint committee appointed under any enactment, order or scheme if all the constituent authorities are local authorities.

PART IV.

MODIFICATIONS OF LANDS CLAUSES ACTS AND ACQUISITION
OF LAND (ASSESSMENT OF COMPENSATION) ACT, 1919, FOR
PURPOSES OF THIS ACT.*The Lands Clauses Acts.*

11. In construing the Lands Clauses Acts as incorporated with a compulsory purchase order,—

- (a) this Act, together with the compulsory purchase order in question, shall be deemed to be the special Act ;
- (b) references to the promoters of the undertaking shall be construed as references to the Board of Trade ;
- (c) references to the execution of the works shall be construed as references to any erection or carrying out by the Board of Trade of buildings or works authorised by this Act.

12. The following sections of the Lands Clauses Consolidation Act, 1845, shall be excepted from incorporation with a compulsory purchase order, that is to say,—^{8 & 9 Vict. c. 18.}

- (a) sections one hundred and twenty-seven to one hundred and thirty-two (which relate to the sale of superfluous land) ;
- (b) section one hundred and thirty-three (which relates to promoters making good deficiencies in land tax and rates) ;
- (c) sections one hundred and fifty and one hundred and fifty-one (which relate to access to the special Act).

13.—(1) Where the Board of Trade have served notice to treat on every owner of any land, they may at any time thereafter serve a notice on every owner and occupier of any of the land, describing the land to which the notice relates and stating their intention to enter on that land and take possession thereof at the expiration of such period (not being less than fourteen days) from the date on which the notice is served as may be therein specified.

(2) At the expiration of the period specified in such a notice (or, where two or more such notices are required, and the periods specified in the several notices do not expire at the same time, at the expiration of the last of those periods to expire), or at any time thereafter, the Board of Trade may enter on and take possession of the land without previous consent or compliance with sections eighty-four to ninety of the Lands Clauses Consolidation Act, 1845, but subject to the payment of the like compensation for the land of which possession is taken, and interest on the compensation agreed or awarded, as they would have been required to pay if those provisions had been complied with.

14. The following provisions shall have effect in substitution for the provisions of section ninety-two of the Lands Clauses Consolidation Act, 1845, that is to say, no person shall be required to sell a part only of any house, building or manufactory, or of a park or garden belonging to a house, if he is willing and able to sell the whole of the house, building, manufactory, park or garden, unless the arbitrator determines that, in the case of a house, building or manufactory, such part as is

2ND SCH.
—cont.

proposed to be taken can be taken without material detriment to the house, building or manufactory, or, in the case of a park or garden, that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house, and, if he so determines, he shall award compensation in respect of any loss due to the severance of the part so proposed to be taken, in addition to the value of that part, and thereupon the party interested shall be required to sell to the Board of Trade that part of the house, building, manufactory, park or garden.

15. Where glebe land or other land belonging to an ecclesiastical benefice is purchased compulsorily, or compensation falls to be paid for damage sustained by the owner of such land by reason of severance or injury affecting the land, sums agreed upon or awarded for the purchase, severance or injury shall not be paid as directed by the Lands Clauses Acts, but shall be paid to the Ecclesiastical Commissioners to be applied for the purposes for which the proceeds of a sale by agreement of the land would be applicable under any enactment or Measure authorising such a sale.

16. All notices required to be served by the Board of Trade may, notwithstanding anything in section nineteen of the Lands Clauses Consolidation Act, 1845, be served and addressed in the manner specified in this Act in relation to notices required to be served under this Act.

Acquisition of Land (Assessment of Compensation) Act, 1919.

17. The arbitrator shall not take into account any interest in land, or any enhancement of the value of any interest in land by reason of any building erected, work done or improvement or alteration made, whether on the land purchased or on any other land with which the claimant is, or was at the time of the erection, doing or making of the building, work, improvement or alteration, directly or indirectly concerned, if the arbitrator is satisfied that the creation of the interest, the erection of the building, the doing of the work, or the making of the improvement or alteration, as the case may be, was not reasonably necessary and was undertaken with a view to obtaining compensation or increased compensation.

PART V.

APPLICATION TO SCOTLAND.

18. This Schedule shall apply to Scotland subject to the following modifications :—

- (a) for any reference to the High Court there shall be substituted a reference to the Court of Session ; and for any reference to the Minister of Agriculture and Fisheries or the Minister of Town and Country Planning there shall be substituted a reference to the Secretary of State ;
- (b) for the provisions of the Lands Clauses Consolidation Act, 1845, referred to, there shall be substituted the corresponding provisions of the Lands Clauses Consolidation (Scotland) Act, 1845, that is to say for section nineteen, section eighteen ; for

sections eighty-four to ninety, sections eighty-three to eighty-eight; for section ninety-two, section ninety; for sections one hundred and twenty-seven to one hundred and thirty-two, sections one hundred and twenty to one hundred and twenty-five; for section one hundred and thirty-three, section one hundred and twenty-seven; and for sections one hundred and fifty and one hundred and fifty-one, sections one hundred and forty-two and one hundred and forty-three;

2ND SCH.
—cont.

- (c) for references to the Railways Clauses Consolidation Act, 1845, and to sections seventy-seven and seventy-eight to eighty-five thereof there shall be respectively substituted references to the Railways Clauses Consolidation (Scotland) Act, 1845, and 8 & 9 Vict. to section seventy and sections seventy-one to seventy-eight c. 33. thereof;
- (d) paragraph 3 shall have effect as if subsections (2) to (5) of section two hundred and ninety of the Local Government Act, 1933, applied to Scotland with the substitution of references to an order for references to a summons, and the omission of the word "summarily" in subsection (4) and of the words from "and every such order" in subsection (5) to the end of the subsection;
- (e) for any reference to section forty-two of the Town and Country Planning Act, 1944, there shall be substituted a reference to any similar enactment applying to Scotland;
- (f) paragraph 7 shall have effect as if the references to fuel allotments, field garden allotments, and land subject to being enclosed under the Inclosure Acts, 1845 to 1882, were omitted;
- (g) paragraph 14 shall not apply.

CHAPTER 37.

Education (Scotland) Act, 1945.

ARRANGEMENT OF SECTIONS.

PART I.

PROVISION OF EDUCATION BY EDUCATION AUTHORITIES.

Primary, Secondary and Further Education.

Section.

1. Provision of educational facilities by education authorities.
2. Provision of educational facilities to be in accordance with schemes.
3. Facilities for recreation and social and physical training.
4. Amendment of s. 68 of Act of 1872.
5. Safeguards for religious beliefs.
6. Child guidance service.
7. Education of pupils requiring special educational treatment.
8. Power to provide education elsewhere than at an educational establishment.
9. Provision of hostels, etc.
10. Combination of institutions for mental defectives and special schools.